



EMPLOYMENT TRIBUNALS

Heard at: Croydon (by video)

On: 7 to 10 July 2025 and in chambers on 18 July 2025

Claimant: Mrs Ednah Lawal

Respondent (1) Mrs Audrey Sentinella
(2) The First Church of Christ, Scientist

Before: Employment Judge E Fowell
Mrs G Mitchell
Mr C Gardner

Representation:

Claimant In person

Respondent Patrick Halliday of counsel, instructed by Kingsley Napley LLP

RESERVED JUDGMENT

The unanimous decision of the Tribunal is that all of the complaints are dismissed on the following main grounds:

1. This is a claim against a qualification body. The claim involves complaints of harassment and discrimination on grounds of race and sex.
2. The complaints relate to (1) a webinar held in 2021 (2) the decision to withdraw the claimant's accreditation as a Christian Science Nurse and (3) a failure by the second respondent to respond to a complaint about that decision.
3. The Tribunal does not find that any of the complaints of discrimination were on grounds of race or sex or that any of the complaints of harassment were related to race or sex.

4. Further, the Tribunal does not accept that any of the complaints of harassment fall within the scope of section 53 Equality Act 2010, which concerns the liability of qualification bodies.
5. Nor does the Tribunal accept that the complaint of discrimination relating to the webinar falls within the scope of that section.
6. The complaints in relation to the webinar are also out of time.

REASONS

Introduction

1. The background to the case was set out by Employment Judge Lumby following the preliminary hearing on 15 November 2024 and we gratefully adopt it. As he explained:
 38. Christian Science is a Christian denomination founded by Mary Baker Eddy in the United States more than a century ago. The Second Respondent is the international head of the denomination, often referred to the Mother Church, and is located in Boston, Massachusetts.
 39. One of the activities of the denomination is Christian Science nursing. This is a religious ministry distinct from registered or licensed nursing. It involves non-medical nursing and physical care in support of individuals seeking spiritual healing through prayer. The Second Respondent is responsible for licensing Christian Science nurses and accepts it is a qualifications body for the purposes of sections 53 and 54 of the Equality Act 2010. The licensing is recorded by an advertisement in the Christian Science Journal and is referred to as the licensee's card.
 40. A separate body is responsible for the accreditation of Christian Science nursing facilities, being The Commission for Accreditation of Christian Science Nursing Organizations/Facilities, Inc. It is said to be independent from and not in the ownership of the Second Respondent. The First Respondent was President of the Commission from January 2021 to October 2022. In November 2022, she became an employee of the Second Respondent.
 41. The claimant has worked as a licensed Christian Science Nurse since she was 19. In 2019, she became the administrator of a Christian Science nursing facility at Charton Manor in Kent. That facility was operated by a separate entity, Hawthorne Trust Limited, which also employed the claimant. The Commission decide to revoke Charton Manor's accreditation with effect from April 2021 and the claimant was made redundant in August 2023. She

also has a separate claim against Hawthorne in relation to that dismissal, which is being considered separately from this claim.

42. In May 2023, the claimant's licensing as a Christian Science nurse was revoked by the Second Respondent and the decision communicated to her.
43. The claimant says that there was a systematic campaign of discrimination against her from the point that she was appointed as administrator at Charton Manor. She says that this campaign has been motivated by her sex and by her race, which for the purposes of the claim she says is a black African.
44. In particular, Mrs Lawal refers to a complaint made against her in 2019. She says that this was the subject of an independent investigation which exonerated her. She says that the respondents refused to accept this outcome, but rather pursued a campaign against her.
45. She also referred to discrimination experienced by her at the hands of Mrs Bonnie Castroman, on a trip to Boston in 2019 and subsequently, including allegedly spreading false information about the claimant. Mrs Castroman passed in 2021 and is referred to as background information to the events claimed in 2021 and 2023. The claimant also says that the First Respondent was involved in the campaign against her; by way of background, she cites the First Respondent's alleged failure in early 2021 to correct inaccuracies in an inspection report on Charton Manor when requested to do so by the claimant.
46. It is agreed that, on the 7th May 2021, there was a Zoom meeting/webinar that related to the removal of Charton Manor's accreditation. The respondents say that this was an innocuous event, intended to communicate about the loss of accreditation and to support Charton Manor's efforts to meet accreditation in the future. Mrs Lawal says that it was a deliberate attempt to undermine and humiliate her, amounting to an act of harassment on grounds of race and sex. She says the meeting was run by the First Respondent and planned by her and the late Mrs Castroman.
47. It is also agreed that, in May 2023, Charton Manor was closed. The respondents say that this was as a result of a number of serious complaints that led to an on-site inspection conducted by the Commission. The respondents say that this inspection found evidence of neglect, poor care and judgment, alteration of documents and incidents being undocumented /unreported. Mr Lawal says that this was the culmination of attempts to discriminate against/undermine her because she was a black women in a senior position.

48. On 4th May 2023 the Second Respondent's Board of Directors approved the First Respondent's recommendation to 'remove the cards' of three Christian Science nurses, including Mrs Lawal. This refers to removing the nurses from the directory of Christian Science Nurses and, in effect, removing their licensing and so expelling them from the organisation. The respondents say that this was in response the findings of the investigation into Charton Manor. Mrs Lawal says that it was discrimination on grounds of race and sex. The decision was communicated to her on 16 May 2023.
 49. On 7th July 2023, the claimant wrote to the Board of Directors of the Second Respondent raising her concerns at her treatment. Whilst this communication was acknowledged, she received no substantive reply. This is also said to be discrimination on the same grounds.
 50. The claimant says that the Zoom meeting/webinar in 2019, the removal of her licensing as a Christian Science nurse and the failure of the Board of Directors to fail to respond to her complaint about her treatment all arose as part of the campaign against her and amounted to discrimination and harassment on the grounds of race and sex. The respondents deny the claims and allege the claim in relation to the Zoom meeting is out of time. The claimant says that call was part of continuing pattern of events, ultimately culminating in the removal of her licensing
2. That order set out the issues we have to decide. They involve complaints of harassment and direct discrimination on grounds of both race and sex. The factual allegations are as follows:
 - (a) On 7 May 2021, Mrs Sentinella organised a webinar by Zoom (concerning the accreditation of Charton Manor as a Christian Science nursing facility) which was designed to humiliate Mrs Lawal;
 - (b) On 4 May 2023, Mrs Sentinella decided to remove Mrs Lawal's card from the Christian Science Journal;
 - (c) On 16 May 2023, Mrs Sentinella communicated to Mrs Lawal the decision to remove her card from the Christian Science Journal;
 - (d) Mrs Sentinella failed to address, or address timeously, Mrs Lawal's complaint of 7 July 2023 to Mother Church's Board of Directors.
 3. The second and third of these allegations are essentially the same – the decision to remove Mrs Lawal's card or accreditation. In essence therefore the claim is about:
 - (a) the webinar in May 2021,

- (b) the decision to remove Mrs Lawal's card, and
 - (c) the failure to address her complaint.
4. The complaints against Mrs Sentinella are limited to the webinar and removing the card but in fact *she* did not remove it, she only recommended that it be removed. The actual decision was made by Mr Evans, one of the five Directors of the Board of the Mother Church, so the allegation as drawn up is clearly wrong and we will treat it as an allegation that *recommending* the removal of the card was an act of discrimination or harassment.
 5. As mentioned in the above summary, this claim is not against Mrs Lawal's employer but against the Church in its capacity as a qualification body and also against one of its staff, Mrs Sentinella. The claim against her employer, the Hawthorne Trust, has been listed for a five-day hearing next February.
 6. Fundamentally, it is a case involving two very opposed views. Mrs Lawal says that from the time of her appointment as the Administrator at Charton Manor, the first black woman to hold that role, allegations were raised against her and the home, resulting in the removal of her card. The Church says that there were already concerns about her management style, that it was not a caring environment and that they had to act on the complaints.

Procedure and evidence

7. We heard evidence from Mrs Lawal and she provided supportive statements from a number of former colleagues: Selina Cheshire and Susan Kember, two Christian Science Nurses at the home; Linda Ashton, a former Head of Nursing there; Florence Mutambara, the Head of Nursing at the time of the closure of the home; and Valerie McIntyre, who was Head of the Visiting Christian Science Service at Charton Manor. This is a domiciliary care service, run from the home and visiting a number of church members around the area to provide them with Christian Science nursing care.
8. Most of these short statements were in the form of character references, attesting to Mrs Lawal's professionalism, friendliness and supportiveness. Mr Halliday said he had no questions for these witnesses but we wanted to hear from Mrs McIntyre since her statement went further and dealt with the webinar.
9. She then gave evidence briefly and stressed how unfair she thought the webinar was and that she was horrified from the beginning. As with all Church meetings it began with some passages from the Bible and readings from Mrs Eddy but she told us that she did not know that you could have such nasty readings from the Bible. We were quite sure that her reaction was genuine but having watched the video, which lasts about two and a half hours, our view was much more mixed and

we found it hard to understand how she felt quite so strongly about it. But we will come to that.

10. On behalf of the respondents we heard from Mrs Sentinella and Mr Evans. He attended from the eastern USA throughout the hearing, despite the time zone difference. The hearing had been due to take place in person in Croydon but it was changed to a video hearing on the Friday before the hearing began. Fortunately, the United States government has given permission its citizens to give evidence by video in all civil cases in the UK.
11. There was a bundle of 583 pages. This was in excess of the page limit given at the preliminary hearing but we accepted that the parties have been unable to whittle everything down any further.
12. We felt that all of the witnesses gave a truthful account of events as they saw it. The differences between them, as so often, were ones of perception.
13. Having considered this evidence and the submissions on each side we make the following findings of fact. Not every point is dealt with, only those necessary to address the issues and to support our conclusions. Where other members of staff are mentioned, those who are not witnesses or closely involved in the case, we will generally just give their first name, unless there is some particular reason to identify them more fully.

Findings of Fact

The Church and Commission structure

14. We should emphasise at the outset that we are dealing with a number of separate organisations. We will refer to the second respondent as the Mother Church, the term used by all parties. The Mother Church is the qualifications body.
15. Separate to the Mother Church is the Commission. Its full title is the Commission for Accreditation of Christian Science Nursing Organizations/Facilities Inc. and it has oversight of Christian Science facilities like Charton Manor. Ultimately, it has the power to withdraw accreditation if a home is not meeting the expected standards.
16. The summary by Employment Judge Lumby has already mentioned that that is what happened here, and Charton Manor lost its accreditation as a Christian Science facility in 2021. The disputed webinar took place shortly afterwards. Before getting to the detail of those events, the webinar proved to be a useful source of background information about the Mother Church and the Commission, which we accept as an accurate source.

17. One of the sessions explained how this separation of powers came about. Ms Lesley Pitts gave a session was entitled *History of Hawthorne & CS Nursing in the UK* which included the following:

'In 1997, as the Christian Science Board of Directors [of the Mother Church] earnestly considered its duties within the framework established by Mary Baker Eddy in the Church Manual, it decided to withdraw from its oversight of the institutions surrounding the ministry of Christian Science nurses. The Board retained its role with individual Christian Science nurses as it does with practitioners and teachers and strengthened its understanding and appreciation for the role of the Christian Science nurse as defined in the Manual. Knowing that the oversight of all Christian Science nursing facilities was important, it set up and funded The Commission for the Accreditation of Christian Science Nursing Facilities/Organizations, Inc. in a way that it could operate independently of The Mother Church after a short time.

In 2000, the Care Standards Act was enacted which led to new negotiations led by the Committee on Publication both in the US and the UK to allow for Christian Science Houses to operate and to recognize the designation of Christian Science nurse. Many hours of discussion eventually led to an Information Guide to be used by inspectors from the Commission for Social Care Inspection so that no policies or procedures would impinge upon the deeply held beliefs of Christian Scientists seeking nursing care. Accreditation by The Commission continues to give direction and guidance on the highest possible standards as laid down by experienced Christian Science nurses and administrators.

18. A later session by Mr Peter Sisson, UK Government Relations Counsel, expanded on the discussions with CQC, which was the body established by this 2000 Act in succession to the Commission for Social Care Inspection. He acknowledged the central tension between medical care and Christian Science Nursing as follows:

"The fundamental issue that has already been alluded to was this, that medical approaches to caregiving are just completely and utterly irreconcilable to Christian Science Nursing Care, and the committee office learnt very early on that the only solution to this lay in seeking to build a bridge between the houses, the visiting Christian Science Nurse Services and the inspectorates."

19. After that he gave a detailed account of the discussions over many years which eventually, by about 2017, resulted in a meeting of minds, or at least an acceptance by CQC of Christian Science Nursing:

"Over the past 20 years, following the enactment of the Care Standards Act, many individuals working in the field of Christian Science Nursing Care have

worked long and tirelessly to establish the provision of Christian Science Nursing Care is recognised by the government as a valid and valuable form of care.”

20. So, the CQC carry out inspections of Christian Science facilities, assessing the physical and practical aspects of the care provided, and the Commission (not the Mother Church) carries out its own inspections of the facilities to make sure that the standards of Christian Science Nursing were being upheld, a sort of spiritual CQC. The distinction is fundamental, but not always easy to bear in mind since people moved from one to the other.
21. Mrs Sentinella’s main role from 2014 to 2022 was at a care home in Switzerland, but she also became involved in the work of the Commission and was a Director from January 2020 to October 2022. In fact from January 2021 she was the President.
22. In that capacity she gave one of the sessions in the webinar. She talked about the Commission’s inspection standards and how the inspection of Charton Manor was carried out. Those standards reflect the bylaws of the Mother Church, set out in its Manual, especially Article 8, Section 31, entitled *Christian Science Nurse*. This is a key text:

“A member of the Mother Church who represents himself or herself as a Christian Science Nurse shall be one who has a demonstrable knowledge of Christian science practice, who thoroughly understands the practical wisdom necessary in a sick room, and who can take proper care of the sick.

The cards of such persons may be inserted in the Christian Science Journal under rules established by the publishers.”

23. This is also the standard against which the accreditation of an individual is judged. That power, in the case of individuals, has been retained by the Mother Church, in particular by what is known as the Activities Department. At that time, the Head of that department was Ms Bonnie Castroman.

Charton Manor

24. The third organisation we are concerned with is Charton Manor itself, which we must now refer to in the past tense. Like the Mother Church and the Commission they had their own Board, headed in the last few years by Mrs Margaret Chaplin.
25. About twenty people worked there – some housekeepers and gardeners, one or two admin staff but mainly Christian Science Nurses. Many of these were students, undertaking a training programme of three or four years before qualification, but they were referred to as Christian Science Nurses as a courtesy. Almost all of them are recruited overseas. There was also a training or education

unit and when Mrs Lawal first arrived in 1995 the training co-ordinator was Mrs Sentinella, so she was very familiar with Charton Manor.

26. An important figure was the Head (at one time the Superintendent) of Nursing. She (always she) had a Deputy to help run the nursing operation, and above them was the Administrator. By tradition, this was a purely managerial post. The holder was not a Christian Science Nurse. He (always he) had overall responsibility for the home – finances, admin, recruitment, liaising with the Board - but the Head of Nursing would be in charge of the Christian Science Nurses as a group and for the care provided. Another figure at the home in later years was Mrs McIntyre, who had an office there as Head of the Visiting Service.

2019 - The appointment of the Administrator

27. Mrs Lawal started her training when she was 19 and joined Charton Manor in 1995, having qualified as a Christian Science Nurse. Over the years she progressed to Deputy Head of Nursing, then Head. The Administrator for the last few years was Mr Alastair Budd.
28. In 2019 he decided to retire and this was an opportunity for a reset by the Trustees. The need for a change had been apparent for some time. We have an email from Ms Castroman to the Board in January 2019 [124] when she wrote:

‘This is a crucial time for Charton -- a new chapter is about to begin with the opportunity to choose new leadership. As this choice is being prayed about, recognizing that it certainly holds the promise of new approaches and ideas, and fresh enthusiasm to tackle the issues of today.

From my perspective, a breath of fresh air is very much needed in the UK in order for Christian Science nursing to move forward. It also is clear that Charton Manor is the key to this, since it is the hub of training and the largest organization, and has long had the support of your field.

... From my experience, I realize it can be difficult for individuals who have been in a director's chair for many years to change their approach to management. But one thing is certain -- Christian Science nursing organizations need to drop the authoritative, military model of the past and be willing to embrace a loving supportive approach of working with staff and the field -- if we are to progress.

29. From this we also gather not only that Charton Manor was a key facility for the Mother Church in the UK but that Ms Castroman, as Head of the Administration department, was closely involved in efforts to improve the culture. The reference to an authoritative, military model also chimes with Mrs Lawal's own evidence, which was critical of a bullying approach from several of the previous Administrators.

30. In keeping with this new approach the plan was that the new Administrator would be a Christian Science Nurse. We gather that three candidates applied, one of whom was Mrs Lawal. Another was one of the Christian Science Nurses, Ms Wendy de la Harpe (a white woman). We have no information about the third candidate but we gleaned some information about Ms de la Harpe from a later document [200]. She had been working at the Trust since May 2013 and had been a Visiting Science Nurse since September 2018.
31. We have no information either about the selection process (since Hawthorne Trust is not a party to this claim) but Ms de la Harpe was the one selected, despite the fact that she had until then been junior to Mrs Lawal. Whatever the reason, that must have been a bitter pill for Mrs Lawal to swallow. She had been there for 24 years, working her way up to Head of Nursing. The top job was now available and she had been overlooked in favour of one of her own team, someone who would now be managing her.

Withdrawal of the offer

32. She felt particularly aggrieved because only the previous year she had given a disciplinary warning to Ms de la Harpe, something the Board would not have been aware of. That warning letter [116] was issued on 23 March 2018. It states:

‘Dear Wendy,

Having had time to think about the recent incident, I still found it quite shocking that you actually went to change three weeks schedules on a filed schedule without anybody's permission.

The schedule is a legal document and what you did was totally wrong and resulted in giving yourself four days off instead of two days off.

I am therefore giving you a formal warning and hoping that there will be no repeat of such action in future.’

33. It is hard to know from this how exactly how serious the incident was, or even how seriously Mrs Lawal took it. It describes what Ms de la Harpe did as totally wrong, and her gaining two days holiday, but it does not say that it was deliberate or dishonest.
34. Nevertheless, Mrs Lawal decided to use it as a reason not to appoint Ms de la Harpe. We have an account of what followed from a letter at the time from a Mr Bruce Morgan, a previous Administrator at the home. He was writing to Ms Robin Hussey [140], another of the speakers at the subsequent webinar. (Her role in this is not in fact clear to us.) Mr Morgan wrote as follows:

“I am deeply disturbed at the events that have led to this appointment!

Wendy de la Harpe, in my opinion the perfect candidate for the position of Administrator being a business woman and recently listed in the Journal, as a CS nurse. Her appointment was objected to by Ednah after she had been appointed so the Board decided to interview her again.

Below is the train of events that have been told to me.

At the end of Wendy's second interview with the Board following her appointment, and subsequent to Ednah's objection to her appointment, she felt that the Board having heard that the circumstances relating to a disciplinary matter some time ago cited by Ednah had been largely due to a communication break down, they were happy with the explanation and were willing to proceed with her appointment. The chairman confirmed this to Wendy in a telephone call but [then] Alan had said that they needed to talk to Ednah again. The chairman then phoned her back to say that Ednah had threatened to contact the CQC and Charity Commission if they proceeded with the appointment! The chairman was distraught and Wendy asked the chairman if she could talk to Ednah, a suggestion which he welcomed but to wait until he had spoken to her first....

The chairman called Wendy the following evening and simply told her that they could not offer her the position. He told her that she had been the only candidate and that they would be announcing that they had failed to fill the vacancy (I have it on good authority that there were three candidates of which Ednah was one) and that the position would be re-advertised. He said that Alan would be continuing a while longer.

On Sunday 10th March Wendy saw a memo on the staff notice board announcing that Ednah had been appointed Administrator!

Having been appointed in January, Wendy has still not received, as at 15th March 2019, anything in writing rescinding the appointment that had been given in writing.

This is OUTRAGEOUS and is both unchristian and unethical! It cannot go unchallenged.

Needless to say, Ednah is totally unqualified for the job of Administrator.

I appreciate that it is not a COP matter but since Wendy has been offered the position in writing she could challenge the fiasco in a tribunal, not that I think she would, but it could get out of hand because it is so unprincipled."

35. We should note that the chairman at that time, who made this change of mind, was not Mrs Chaplin but a Mr Weaver.

36. This letter shows the depth of feeling in some quarters about the change of appointment. It is not disputed that Mrs Lawal threatened to report the matter to the CQC, nor that the offer of the job to Ms de la Harpe was then withdrawn.
37. The Trustees were not at this hearing and so had no opportunity to defend themselves against this allegation, but if the events were as described then clearly it was quite wrong of them to have yielded to such pressure. It is not clear to us why this incident would have been of any concern to the CQC or to the Charity Commission but if it was it should have been reported by Mrs Lawal at the time. If the Board took the same view in 2019 they should have reported it themselves.

Concerns by Bonnie Castroman and others

38. Ms de la Harpe wrote to Ms Castroman on 16 February 2019 [122] to give her an account of all this. It is in very similar terms to those of Mr Morgan, though in a much less animated fashion. Ms Castroman's reaction was closer to that of Mr Morgan and she felt that Ms de la Harpe was being too fatalistic about things. On 11 March she wrote [134]:

"Wendy -- I just want to say that you can't tell me -- and other people about these things ... and then back down when the individuals who can really do something about it need to hear it.

That truly would be stirring up problems without resolving them.

IF you are going to tell me about this -- you have to tell The Commission. I have already alerted them and taken a stand for you and others who have been coming to me.

MORAL COURAGE!

Is it right that this get heated? Or should it continue and completely crush CS nursing in the UK? You have some strong support with others who are coming forward.

39. Ms de la Harpe responded briefly to say that she was keeping her head down over fear of losing her job or other retaliation. Ms Castroman then responded [133]:

'Sorry if I am a bit strong in my encouragement. I just know this is a breakthrough moment. So many people have come forward -- some because they heard about your appointment, and the board rescinding it ... and Ednah's hire.

But, most are also bringing their own experiences up in their protests. This has been going on for 20 years!

In one respect it is "abuse" -- abuse of power. It is being exposed to be corrected. Either the error goes or the person with it.

So -- stay strong and carry on!

Love is at the helm. If you receive ANY unkind treatment or retaliation -- immediately report it to the Charton Board- and to The Commission.

Write to Janiva immediately if anything happens or is said by Ednah.

We are standing with you.'

40. The encouragement was therefore directed at Ms de la Harpe. It is not clear to what extent she was encouraging others to come forward, but others did. Ms Castroman then wrote to the Trustees at Charton Manor two days later [129] to set them out, but without giving any names.
41. The complaints were about Mrs Lawal's management style, which was described as domineering, unkind and bullying. Some said they were too frightened to bring up concerns. It was also reported that since Mr Morgan left the Administrator post it had been a "lame duck" position as they had all been dominated by Mrs Lawal. Finally, training classes were delayed and students were just kept working instead, with little on-the-job training.
42. Despite all this, Mrs Lawal's appointment was publicly announced on 15 March 2019. Ms Castroman wrote to her that day [135] to raise these concerns with her directly and suggested a video call to discuss things but it does not seem that it took place. Mrs Lawal wrote back [144] asking for details of the allegations before having a meeting and it got no further.
43. Ms Castroman kept up her efforts and wrote on 20 April [147] to Mr Weaver, (the Chair) Mrs Lawal, Ms de la Harpe and others, to urge an independent review by the Commission. Other senior figures became involved. The result was that a decision was made by the Trustees to have a review by Croner Face2Face, the well-known firm of HR and legal advisers, rather than the Commission.
44. Again, our records come from the relevant Church figures rather than from the home itself, so there are gaps, but that report [164] reveals that Mrs Lawal was suspended on 16 May 2019. The staff were told [161] that she would be taking a break for personal reasons and that in the meantime an independent firm of investigators would be visiting to look into 'the complaints raised by yourself and others'.
45. It was therefore a disciplinary suspension and it is clear from the report that many if not all members of staff were interviewed.

The Croner Report

46. On the question of Ms de la Harpe's warning, the report did find in Mrs Lawal's favour:

'18 In March 2018 WH was issued a written warning for altering a schedule, a document that she had no right to alter, a fraudulent act in the Consultant's opinion and an act of gross misconduct. WH acknowledged what she had done was wrong when she wrote "it was an impulse and I realised as soon as I started that I should not be doing it. However, once I started it was too late to stop."

19. A number of witness have proffered opinions on the validity and severity of the disciplinary sanction. However in a letter following the disciplinary sanction being issued, WH wrote to EL stating "I am sorry for the distress I caused and accept the reprimand". If the sanction was inappropriate or flawed WH could have appealed against the decision.'

47. The main finding however was that the staff were very divided. 14 of them, mostly current employees, were said to be broadly in support of Mrs Lawal while 11, mostly ex-employees 'could be described as having some form of complaint'. It went on:

'From the evidence that has been gathered it is clear that there are two "camps". This is highlighted by a comment from one of the witnesses "there was never a hint of anything of this kind until the appointment was announced. They should be encouraged to get over their prejudices, biases". There was more than one witness that raised suspected undertones of discrimination, these were unsubstantiated and were not raised by EL herself, however the Consultant recommends that all staff including support, admin, management and nursing undertake or renew their formal equality and diversity training.'

48. It concluded:

'The consultant finds that there is reasonable belief that there are no recent and current examples of bullying, threatening or retaliatory behaviours that are verifiable.'

49. This is careful wording. It ended:

'The Consultant suggests that there are some circumstantial statements that seem to indicate that EL could benefit from attending a formal management development course and also a handling difficult conversations course. Whilst there are no corroborated instances of bullying or threatening behaviours EL has been described as having a "strong character" and that

she has to make "tough decisions", and in the opinion of the Consultant that combination can sometimes give the impression of bullying if not handled sensitively.'

50. This too is carefully worded, but the upshot was that the disciplinary allegations were not upheld and Mrs Lawal was free to resume her work. We can see no date on that report but the index to the bundle states that it was produced on 17 June 2019.

Ms de la Harpe's grievance

51. In the meantime Ms de la Harpe was not altogether passive about the withdrawal of her job offer. On 28 March 2019 she wrote to the Chair, Mr Weaver, asking for an explanation for the withdrawal of the job offer [145]. We have no record of any response. She then raised a grievance on 10 May. This led to a grievance investigation by another consultant at Croner Face2Face and the main grievance [200] is recorded as being that Mrs Lawal told lies about her. These included a number of remarks, not just the issue of the disciplinary warning.
52. There was a grievance hearing on 19 July 2019, about a month after the first Croner report. It went into all the allegations in detail. In most cases the assertion that Mrs Lawal had told lies was not upheld. On the question of the holiday schedules, the report stated, at paragraph 50 [207]:

'[The investigator] finds that on the balance of probability that the statement that WH changed the schedule in order to give herself two extra off days is not a true statement. Therefore, this point of grievance is upheld.'

53. In short, one consultant found that Ms de la Harpe had been dishonest ('fraudulent') and another did not.
54. It appears that a letter of apology was then sent to Ms de la Harpe by the Trustees (although it is not in the bundle) and a financial settlement was agreed with her [221].

The CQC inspection

55. While these HR processes were underway, there was also a CQC inspection. The inspectors came in July and reported in September 2019. For these purposes, Mrs Lawal was the Registered Manager.
56. The inspection covered the home and the Visiting Service, run by Mrs McIntyre. There were some shortcomings in that service, mainly down to record keeping and admin, which meant that in some areas the assessment was reduced from Good to Required Improvement. Overall however there were no major problems when Mrs Lawal took over.

Things settle down

57. The first Croner report, which led to Mrs Lawal returning to work, did not mark the end of efforts by Ms Castroman to have the complaints addressed, even if she could not get Ms de la Harpe reinstated. On 25 July 2019 she sent a two-page formal letter to the Trustees [188], copied to Mrs Lawal and a number of staff members. In it she said that many allegations had been received by the Mother Church in recent months about the culture at Charton Manor, including allegations of bullying, intimidation and retaliation. She emphasised how incompatible this was with the expectations of the Mother Church and urged everyone to carry out daily prayer and reflection. She ended:

'We are asking you to earnestly and honestly consider your faithful commitment to fulfilling these responsibilities. They are essential for Charton Manor's progress. They are essential for healing. They are essential for Christian Science nurses to attain and maintain *Journal*-listing, and they are a vital example of how to maintain harmony -- for our world

Please respond to me -- any thoughts you have, prayerful ideas you are led to share and ways you are addressing any evidence of these impositions in your work.

58. There is a hint here of possible sanctions, in that the card or Journal-listing of individuals might be removed, and it also gave the staff the message that she was very willing to hear about any concerns they had.
59. We have dwelt on the events of 2019 because the evidence presented by Mrs Lawal deals extensively with these events. For the next year or more, there were no incidents to record. Mrs Lawal remained as Administrator and the Head of Nursing was Ms Florence Mutambara. Her deputy was Ms Martina Gaskell and the three of them comprised the senior management team.
60. March 2020 marked the start of the first lockdown period in the Covid pandemic, and the rest of that year must have been a very difficult period for the home.

The Commission inspection

61. In December 2020 there was an inspection by the Commission. It was a planned inspection and as it was still a time of Covid restrictions it was done by video. There was an inspection team of four people who spent several days interviewing members of staff and reviewing operations. By then Mrs Sentinella was a Director of the Commission but she was not one of the inspectors.
62. These interviews threw up a number of concerns. One was highlighted to us. It was raised by a Ms Courtenay Rule, one of the Christian Science Nurses. She told the inspectors that a few weeks earlier, on 28 November, she and another

student had had to run a busy floor by themselves for four hours while the managers and other Christian Science Nurses were in a meeting, so there were no qualified staff available.

63. That was not the end of the matter. On 22 February 2021, between the inspection and the outcome, Ms Rule wrote to the inspectors [254] to say that she had just received a phone call from Ms Mutambara and Ms Lawal wanting to know why she had made this statement. (They felt it was unfair as they had only been upstairs and the staff knew where they were.) She described their manner as very intimidating.
64. Overall, the home was assessed against 100 standards and fell short on 40 of them. As a result, the decision was taken to withdraw the home's accreditation as a Christian Science nursing facility. The summary of the report states [252]:

“While Charton Manor provides a loving environment for assisted living with light care needs, it is not meeting the Manual-based requirements for skilled Christian Science nursing, which is the basis for this review.

In general, the practice of Christian Science nursing needs to be lifted to a higher standard. Many ideas have evolved and improved over the past 30 years, but Charton Manor, both in the house and in the visiting service, seems at times to adhere to out-of-date or improper methods. This stems, in part, from a lack of engagement with the wider Christian Science nursing community and also from a lack of awareness on the part of more senior Christian Science nurses.

The training program at Charton Manor is good on paper but poorly executed. Students are not receiving proper training or mentoring in Christian Science nursing. This is preventing the students from progressing at a steady pace like students in other Christian Science nurse training programs.

The management style at Charton Manor appears to be strongly hierarchical. This can lead to resistance by management to entertain new ideas. It also leads to staff that hears (sic) that their ideas are not valued. Staff (particularly the Christian Science nurses) are thereby taught to be quiet or to leave. We have seen evidence of both tendencies among the Christian Science nursing staff at Charton Manor.

65. By the time the report was issued Mrs Sentinella had become President of the Commission. But the decision to remove accreditation was not hers alone, it involved a referral to an independent audit committee. Mrs Sentinella then wrote to the Trustees to confirm the outcome on 31 March 2021 [255]. That letter stipulated that Charton Manor should not accept any new patients ‘requiring skilled Christian Science nursing care’ for the time being, and that they suspend all

training. It was proposed instead that the students go to other facilities for their training. Accreditation was lost not just for the home but also for the education centre and the Visiting Service, which was an unprecedented situation.

66. This obviously had a financial impact on the home. Patients would naturally want to be treated in an accredited facility. From then on, numbers began to decline. At the time of the CQC report there were nine residents and when the home closed two years later it was down to three, and that had been the case for a few months.

The Webinar

67. When the decision was announced the Commission sent a separate letter to the Trustees and staff [259] urging them to make efforts to restore their accreditation and expressing confidence that they would do so. Nevertheless, the decision caused ripples of concern through the wider Christian Science community ‘- the field’ as it is known. A handful of other facilities had lost accreditation in the past but it was still a shock to many of them.
68. On 19 April 2021 Ms Castroman sent an email [262] to Mrs Lawal, Ms Mutambara and Mrs McIntyre. It was couched in positive, prayerful terms but included concern about what was being said to people:

... I received several urgent emails from the UK Field saying that the Visiting Christian Science nurse service told patients that they would not be caring for them after the end of April because the Aid Fund would not be paying. (I checked with Valerie on the first of these -- and she says this is not correct and is a mistake.). But, please -- somehow this continues to be shared -- and people think it is being shared by the Visiting CS nurse -- so this needs to be addressed lovingly, clearly and quickly. .. because it is obviously being repeated.

Whether this was actually said or not -- does not matter -- you need to continue to handle fear and speculation with your clear and loving communication to the field.”

69. By 25 April she had concluded that local communications were not enough and she emailed a number of senior people with the proposal for a webinar to explain things better [265]. They included Robin Hussey, Mrs Sentinella, John Mitchell, Janiva Toler and Lesley Pitts, all of whom took part in it. She stated:

“Because the UK Field is very confused and is not well informed regarding Charton Manor's current status with Accreditation, I am proposing to make a joint presentation to the CS practitioners, (CS nurses?) and Company members, (possibly branch church members?)— to share an overview of key points relating to this situation, including: a clear explanation of the role and history of The Commission ... its important role in establishing and

maintaining standards in all organizations including The Commission's accreditation of the UK Houses; TMC's [The Mother Church's] Journal-listing of only Accredited facilities; how the Committee office supports and works with the Registered Managers and Houses in the UK (and around the world) by assisting to remove impositions on the practice of Christian Science and Christian Science nurses; and to make clear the current request by TMC to Charton ...

70. There was general agreement on this and so it came about, including with Mrs Chaplin from Charton Manor as a contributor. An invitation was circulated [273] to "All Christian Science practitioners and nurses in the UK, Charton Manor Company Members, and any branch church members who wish to attend." It was held on 7 May 2021.
71. The day before this event Ms Castroman passed away. We have no more details but we assume that her death was sudden and unexpected. During the webinar, no mention was made of the reasons for her absence so it seems unlikely that anyone realised that she had actually died.
72. Some of the webinar has already been described. It opened with an introductory statement which, in the absence of Ms Castroman, was given by Connie Coddington, her deputy. It contained, as expected, some passages from the writings of Mrs Eddy and from the Bible.
73. It is very difficult for us to judge whether these texts were out of the ordinary but they touched on orderliness, spiritual growth, the perils of procrastination, 'bearing the cross meekly along the rugged way' - in the sense of the need to trudge on when things are difficult - and also being true and steadfast through trials. All this was interwoven with more uplifting messages and it is hard to see any thing particularly inappropriate in the circumstances.
74. There were then some references to the Church bylaws including Section 31 (already quoted) about having a demonstrable knowledge of Christian Science practice and the practical wisdom necessary in a sick room. Then, the importance of discipline, the increasing amount of health regulations from government, the need for consistency in practise, and being able to demonstrate that they meet their own standards.
75. After this general introduction Leslie Pitts gave her talk about the development of the Church and the need to address itself to the expanding legal framework over recent years. Ms Toler spoke in a similar vein and explained how the Commission had come about as a regulatory body on behalf of the Church and how that had needed two separate groups to come together to agree on the necessary standards. Mr Mitchell spoke more directly about the work of the Commission. A key passage extolling the work of the Commission stated:

First, the importance of accreditation and inspections.

They represent order. Attention to detail. Functionality. Everything being in its right place. Efficiency. Accountability. An agreed-upon, shared standard of excellence for one and all.

Second, the importance of professional standards of management and leadership.

They are impersonal. Christian. Ethical. Systematic. Functional. Dependable and consistent for staff, patients and their families, donors, and the Field.

Third, the protection this brings to our work—through Christian Science nursing and care, the training of Christian Science nurses, in our facilities and throughout the field.

76. His theme was also that these precepts arose naturally from those of the Church and its founder.
77. Ms Janiva Toler then explained how the Commission itself came to be established in its final form following talks in April 2012, so it had been in being for about seven years at the time of Mrs Lawal's appointment. We have no record of any previous inspections but Charton Manor must have been accredited to have had it withdrawn in 2021.
78. Mrs Sentinella then spoke about the inspection and accreditation process explaining how it had been carried out on this occasion, emphasising the amount of scrutiny involved and the fact that this is a normal part of the work of the commission, which carries out about 10 such inspections annually, about a third of the entire membership.
79. The most difficult part for Mrs Lawal may well have been the presentation by Mrs Sentinella. Having described the inspection process she went on to read out the outcome letter in full, together with the restrictions on new patients and training. It made clear the extent of the shortcomings the inspection team had found. She also said this:

“When an organization is not accredited, it is not because there are one or two examples of poor care, poor record keeping, or poorly worded policies. It happens when there is evidence that there is a consistent poor standard of Christian science nursing practice and a general lack of demonstrable knowledge of Christian science practice in the preparation of policies, in the action of staff towards each other and patients, and where there does not appear to be a sound basis of Christian science practice upon which the Christian science nursing is founded. Unsatisfactory assessments of

patients' needs and a lack of consistency of care point to the need for more practical wisdom to be demonstrated throughout the programs. Evidence that there is a lack of proper care being provided to patients must be addressed in order for a Christian science nursing organization to fully meet the standards required of the commission. ...

I want you to also understand here that this is not necessarily a comment on individual Christian science nurses within an organization, rather it is an example of how cultures and customs, processes and hierarchies within an organization can impact the overall effectiveness and standards of the service.'

80. This cannot have been easy listening for any of the staff members, but particularly Mrs Lawal, who was responsible for the culture of the home. However, as with all of the speakers, Mrs Sentinella tried to balance the criticism with positive comments about how things would be in future. She set out various offers of support, made suggestions for improving things and ended with a message of encouragement for the future.
81. Mrs Chaplin then spoke on behalf of the home. She said they were obviously looking for accreditation but that was not going to come tomorrow, there was financial support from a benevolent fund but they were in uncharted waters and were working and praying their way forward. It too was a positive statement delivered without any hint of regret or blame.
82. After that there were some questions from the floor. The final few moments of the overall presentation revealed the various cameras arranged as thumbnail images and there seemed to be about 20 participants on the call. The questions were largely fielded by Mrs Sentinella and they covered practical topics such as how other facilities could help. One question concerned newly engaged staff or managers. It is not quite clear from the transcript what was being asked but Mrs Chaplin responded:

"I think that's a really important point because there have been people who have felt quite aggrieved by what has happened etcetera but it is important that we move forward and as we move forward each step will reveal the next step to be taken. We're having regular meetings in inverted commas as a board and just going each step of the way. And that's really all that I can say at the moment that we are being guided to take each step".

Next steps

83. The complaints continued however. In mid July 2021 Mrs Sentinella was contacted by a member of a church local to Charton Manor which was attended by one of the trainees, Ms Nwanyieze Adiele [304]. The church member reported

that Ms Adiele had been crying, so much so that it was quite hard to hear what she was saying, but she had been scheduled to work a night shift followed by a morning shift – 16 hours in total - for eight days in a row. She said that she had begun to feel quite unwell, was having constant nosebleeds and was suffering exhaustion. She had spoken to Ms Gaskell, the deputy Nursing Manager who, she said, told her that if she wasn't happy she could go home to Nigeria. The church member suggested that she talk to Mrs Lawal but the response was that there was no point as 'they are all in it together'.

84. When asked about this in her evidence Mrs Lawal said that Ms Adiele had wanted to work lots of shifts so that she could send money back to Nigeria. She did not dispute what had been reported however.
85. Also that day Mrs Sentinella had a call from a Christian Science Nurse at Charton Manor who was about to leave the home. She said that the atmosphere was not good, there was a lot of anger towards the Commission and the Mother Church. Three other nurses were leaving or had left that month and there was a lack of trained staff.
86. After the webinar, Ms Linda Kohler had been appointed on an interim basis as Head of the Activities Department. She provided an update report on Charton Manor to the Board of the Mother Church on 25 July [310]. It was pessimistic:

‘... it concerns me that I’ve heard nothing that would indicate a change of heart by CM [Charton Manor] management, or a rousing of thought on the part of the CM board.

One of the most meaningful comments I’ve heard was from a Commission Board member with many years’ experience, who has met with other facility boards and managers regarding unsatisfactory inspections. In every other case, these reports were met with humility. The facilities were grateful to learn, and engaged positively and actively with the Commission to make corrections and get back on track. This Commissioner had never experienced such an unwillingness to accept correction or to recognize The Commission’s legitimacy.

Something is needed to rouse thought. It doesn’t appear that it’s going to come from The Commission. Having withdrawn accreditation, they have no ongoing oversight role. There is interest among some Company members to help, but it is unlikely the Company members would be able to unite on a course of action, and Company members have little real power to act. If anyone is going to rouse the CM Board to action, I think it will need to be *Mother*.

87. However, the Commission (Mrs Sentinella) did become involved. There were a series of Zoom meetings from 5 to 8 October 2021 involving her and Ms Kohler together with Ms Chaplin, Mrs Lawal and others from Charton Manor. It involved about four hours of discussion with Mrs Lawal alone.
88. Afterwards Ms Kohler reported back to the Board on the discussions [313]. She mentioned an unusual number of complaints and also that Mrs Lawal would not accept any responsibility for them - 'Every concern that we raised was either not her fault or not an issue to her.'
89. We have intermittent information about the home, and nothing further for over a year. During that period, Mrs Lawal's brother, Osita, joined the home, as a trainee Christian Science Nurse. That involved him getting a visa to come to the UK from Nigeria. Mrs Lawal sensibly stood aside from the recruitment process but the connection was well known to the rest of the staff.
90. On 1 November 2022 there was a significant change in that Mrs Sentinella moved over from the Commission to replace Ms Kohler as Head of the Activities Department. Individual accreditations then came under her remit. We can see that she made regular reports to Mr Evans, the nominated member of the Board of the Mother Church, as Ms Kohler had done before her. He told us that he had been receiving concerning reports about Charton Manor for two or three years before it closed.

2023– Further complaints

91. In January 2023 Mrs Sentinella had a conversation with the sister of an assisted living resident at Charton Manor (Resident 1). She felt that her sister was not experiencing much kindness and was not being given much chance to socialise. She also added words about keeping this confidential otherwise her sister 'would get the brunt of it' [325].
92. In one of her reports to Mr Evans in February 2023 [335] she told him that she had met with the Commission Board, who felt that the home had not made any progress in the two years since accreditation was withdrawn. They had written to Charton Manor in October 2021 asking for evidence of remedial actions and had not received any response. They had then extended the deadline to the end of February but they felt that there needed to be some kind of resolution soon, even if that meant that the home had to close and re-open. The implication is that it would be under new management.
93. Also that month Ms Gaskell, the Deputy Nursing Manager, left and was replaced on an interim basis by a Ms Laura Wright. She was new to Charton Manor and so less reluctant to report concerns.

94. On 22 March 2023 Mrs Sentinella heard again from Resident 1's sister, who said that her sister had suffered two falls the previous day. One of these was because a Christian Science Nurse had removed a chair without telling her but Resident 1 was reluctant to mention any names, even to her sister [344].
95. Resident 1 had then decided to ask for an x-ray. Although that would be perfectly normal for many people, Christian Scientists often decline medical treatment of this sort. Mrs Lawal and the Christian Science Nurse then came into the room demanding to know why. At this hearing, Mrs Lawal said that this was just to understand what to say to the ambulance when it arrived. Mrs Sentinella accepted that that might account for it but it is not clear to us why Mrs Lawal needed to get involved in the process.
96. On 24 April 2023 there was a meeting to consider how ready Charton Manor was for re-accreditation. Mrs Sentinella was involved, together with her assistant manager, Vanessa Campbell, and John Mitchell. They told the Trustees that they thought it was very unlikely that the home would regain accreditation shortly and estimated it would take two or three more years.
97. Mrs Sentinella's impression was that only then did the Trustees begin to realise that the problem was much bigger than they had previously thought and that they had relied too heavily on what Mrs Lawal had been telling them. The implications for the Trustees must have been clear. The home was not financially viable as it was, with three residents, and they had been pinning their hopes on reaccreditation in the near future.

The conference in April 2023

98. The next day was the start of a 3-day conference of the Christian Science Nursing Association UK, held in Manchester. Mrs Chaplin and another Trustee, Ms Gill, were there, with Mrs Sentinella and others, so discussions continued. They made clear that they did not think the home could stay open.
99. Over lunch that day Mrs Sentinella had a message from Laura Wright, the new Deputy Nursing Manager at Charton Manor. She texted to say that a resident (Resident 11) had a bandage because one of the heavy portable shower dividers fell on her leg when she was having care from Osita, Mrs Lawal's brother. Another Christian Science Nurse had then tried to use steri-strips to bring the skin together but it was in fact a wound and this just made things worse. Ms Wright had then spent two hours with the patient, who was in great discomfort, carefully removing the bandage.
100. Ms Wright also told her that she had put up copies of the Christian Science by-laws (about kindness) at their workstation but they had been ripped down.

101. Also during the conference, Mrs Sentinella met Courtenay Rule, who had made the earlier report about all the Christian Science Nurses being in a meeting and leaving two students to cope. She was no longer at Charton Manor but Mrs Sentinella found her in tears because she was afraid of bumping into Mrs Lawal at the conference.

The Commission inspection in May 2023

102. Shortly afterwards, on 1 May 2023, the Commission team (Julie Brearley and Amy Fugman) arrived at Charton Manor to carry out their follow up inspection.
103. During the time they were there, and quite independently, a former student (Luis) contacted Ms Campbell (Mrs Sentinella's deputy) and told her about his experiences there. He said that patients had been afraid of Ms Gaskell [392]. He also told her that he had been paid less than the minimum wage when he arrived, that the accommodation was small and he had no personal bathroom, whereas Osita had been given a big apartment with a bathroom. He described a general climate that discouraged complaints and said that having moved to another home, Lime Tree, the difference was like night and day.
104. The Commission team completed their inspection and produced what is described as an interim report [396-400]. The main criticisms were that residents were isolated and that staff lacked time, the care plans were too long, hard to follow and poorly shared, and there was a specific concern about Resident 11 - her injury had been described as a bruise when in fact it still needed daily attention six weeks later and this should have been reported to the CQC.

The closure of the home

105. The Trustees lost no time in announcing that the home would have to close. The decision was made on 2 May 2023, the second and final day of the inspection. In response, the Board of the Mother Church wrote the next day [401] to say that:
- 'Effective immediately, Hawthorne Trust Limited should no longer represent itself to the public as providing Christian Science nursing care.'
106. The letter was signed by all five Directors, including Mr Evans, and the Trustees were told to relocate the remaining residents within seven days.
107. Also on 2 May Mrs Sentinella became aware that Ms Adiele, who had been so upset about her long hours, had brought an Employment Tribunal claim. Mrs Sentinella was sent a copy of the Particulars of Claim [405]. They were professionally drafted and ran to 23 pages.
108. These particulars showed that she had been dismissed on 15 October 2021, about three months after she had been upset at church. The claims were of unfair

dismissal, various types of race discrimination and as a whistleblower for reporting breaches of the Working Time Regulations.

109. It also recorded, exactly as described by the church member, that Ms Gaskell had made her work for eight consecutive 16 hour shifts. She had then raised a complaint and that led, the claim said, to disciplinary allegations being raised against her. The allegations were that she had made vexatious complaints about Ms Gaskell and also in relation to falsifying 'charting records'. These are records of the treatment given to patients. Ms Adiele's account was that they did not always have time to make a proper record so they would make the records up later. There was also an allegation of failing to fill up the water jugs in the patient's rooms.

110. As an example of the sort of bullying treatment she received from Miss Gaskill, Ms Adiele said that there was an occasion when Ms Gaskell tried to strangle her when she thought that she had dumped a bag of bed sheets in the utility room. And there were also allegations against Osita Lawal, including sexual harassment.

111. Mrs Sentinella's view, when she saw the allegations, was that they were not at all serious enough to justify her dismissal. She then wrote to Mrs Chaplin [440] about this stating:

'If Nwanyieze miswrote times on the charts or even forgot to fill water jugs, then it is a simple process of reminding her and having her mentor work with her, but not vilifying her for this... At most, it's a learning opportunity for the student.

I just think that this "fraudulent documentation" has been used as an excuse for many things (not believing a complaint, putting some one out of a job, etc. over the years and really that's all it is - an excuse.'

112. However, this was all long after Ms Adiele had been dismissed.

113. On 4 May 2023, the main event occurred which arose from these previous concerns. Mrs Sentinella sent a formal recommendation to the Christian Science Board of Directors, that the Journal listings of Mrs Lawal, Ms Gaskell and Ms Mutambara be removed. The whole senior management team was therefore held responsible, not just Mrs Lawal.

114. The letter [430] listed the main grounds, which we have already covered. In summary, there were the many complaints, the unwillingness of complainants to be identified, the neglect or poor care at the home, particularly Resident 11, the fact that Ms Mutumbara seemed not to know how to make appropriate assessments and provide the correct care in many situations, that Ms Lawal's brother was implicated in a number of incidents although he was not suitable for

training as a Christian Science nurse and that staff could not complain about him to Mrs Lawal because of the family relationship, as well as fear of retaliation.

115. Mrs Lawal was not told about this development and there was no opportunity for her to make any representations before this drastic step was taken.
116. The decision was then taken by Mr Evans. He had never met Mrs Lawal and was relying on the information given to him by Mrs Sentinella, in her recommendation letter and previous reports. He wrote to Mrs Lawal on 15 May 2023 [445] to inform her of the removal of her card. By then of course the home had already closed.

The complaint / appeal

117. It is not clear what Mrs Lawal's circumstances were at the time or even, from the information we have, when her employment ended but nearly two months elapsed before she wrote back to Mr Evans about this. Her email of 7 July 2023 [458] was headed 'Bullying, harassment and defamation of character by Audrey Sentinella':

'Dear Chris (sic)

It is with a heavy heart that I write to complain about my treatment at the hands of Audrey Sentinella,

Immediately I was appointed as the Administrator of Charton Manor there was a complain[t] mainly because another staff who had a disciplinary record didn't get the job due to the disciplinary record on her file at the time. Being the first person from the ethnic minority to be in such post there was some false accusations which led to an investigation by an independent consultant that exonerated me and recommended that all staff including the board of Charton Manor take a course on equality and diversity.

... It is unfortunate to see Audrey's bullying, harassment and treatment of Christian Science nurses in UK. We are being threatening, telling us that any one who does a refresher course except through the specific facilities she recommended would never work in UK. ...

A lot of the Christian Science Nurses are living in fear and those from the ether (sic) minority feel it more, Christian Science is all about love, it is sad to see total lack of that from Audrey

I'll be happy to provide witness statements, copy of the independent investigation and email trails of the kind of hatred that Audrey is involved in'

118. It is not in fact an appeal against the removal of the card. That is not actually mentioned. Nor did it engage with the concerns about poor care and the climate of fear at the home – things Mrs Lawal was well aware of from the Commission's

interim report and earlier documents. It is simply a personal complaint against Mrs Sentinella, accusing her of racism.

119. In the circumstances Mr Evans simply sent her an email response from his phone:

‘Thank you for sharing, Ednah.’

120. The terms of this email are similar to the terms of the original claim form [16] which described things in very personal terms between her and Mrs Sentinella. She stated that Mrs Sentinella had waged a campaign against her since her appointment in 2019, that false information had been spread against her and that there was institutional racism within the Christian Science organisation. That is clearly the way in which Mrs Lawal sees things, but for the reasons set out below we cannot share that view, and we conclude that there were in fact good reasons for the criticisms made about the running of the home.

Applicable Law and Conclusions

Harassment – the legal test

121. We turn to consider the individual allegations. In simple terms, harassment is offensive treatment of one sort of another. It has to be ‘related to’ the relevant protected characteristic, in this case race or sex.

122. The legal test is set out at section 26 Equality Act and is as follows:

(1) A person (A) harasses another (B) if—

- (a) A engages in unwanted conduct related to a relevant protected characteristic, and
- (b) the conduct has the purpose or effect of —
 - (i) violating B's dignity, or
 - (ii) creating an intimidating, hostile, degrading, humiliating or offensive environment for B.

123. In the case of the webinar the allegation is not that it had this effect. It is squarely that it was done with that purpose. The other allegations are capable of being understood either as something done with the purpose of violating Mrs Lawal’s dignity etc. or something that had that effect.

124. Section 26(4) also provides:

In deciding whether conduct has [this effect], each of the following must be taken into account,

- (a) the perception of B;
- (b) the other circumstances of the case;
- (c) whether it is reasonable for the conduct to have that effect.

125. Finally, if there was such conduct, was it *related to* Mrs Lawal's race or sex?

Harassment – consideration of the allegations

126. Let us start then with the complaint in respect of the webinar. It seems to us clear that it was not designed to humiliate Mrs Lawal. We have already described the event in some detail and the reasons for having it and it seems to us that those reasons were genuine and understandable. There was concern in the field about what had happened, also about why it had happened and what would be done about it. We recall the concern which was raised with Mrs Sentinella by a member of the local church about Ms Adiele, when she was in tears over her long hours. That incident shows that members of staff did attend a local church and talked to churchgoers there. We also heard that Charton Manor was a training hub for the church in the UK and so a significant establishment, so naturally the wider community would have an interest in what was happening there.

127. Of course, all this interest could have been used as an opportunity to embarrass Mrs Lawal. Ms Castroman was the main organiser of the webinar and there was clearly a strained relationship between her and Ms Castroman. Or at least there had been at the time of Ms Lawal's appointment. Then, she badly wanted Ms de la Harpe to be appointed. It seems to us that she felt that Ms Lawal was associated with the old guard there and a hierarchical way of doing things, whereas Ms de la Harpe represented a fresh start. She had been quite passionate about this at the time, to judge by her emails, but that may well have been in large part because of the way in which Ms de la Harpe was supplanted by Ms Lawal, in what she saw as an underhand way. Mr Morgan certainly saw it in those terms. Even afterwards she wrote to the staff to make them aware that they could raise any concerns with her. But there is no reason to believe that that was not a matter of genuine concern about the culture at Charton Manor. And as it proved, there were quite a number of such concerns. Most importantly however, her efforts were not really continued beyond that point. Ms Lawal had her chance at managing the home. Two years passed after Ms Lawal's appointment and the Commission report which led to the webinar, with hardly anything to report, and we think it unlikely that Ms Castroman would have nursed a grudge for so long.

128. There is also the fact that Ms Castroman was not responsible for the Commission report. There was of course a good deal of interaction between the two organisations, and no doubt she and Mrs Sentinella discussed Charton Manor

from time to time, but there was nevertheless a degree of separation. She cannot be blamed for the findings of the Commission.

129. The main reason for concluding that this event was not designed to humiliate her however was the way it was done. Having concluded that the reasons for holding it were genuine, it seems to us that every effort was made to minimise the embarrassment to Ms Lawal. There was certainly the opportunity to point the finger of blame but Ms Lawal was not mentioned at all. Mrs Chaplin spoke on behalf of the home and she too made no effort to blame Ms Lawal or others. Overall therefore, we do not uphold this complaint.
130. The next, and main, complaint concerns the withdrawal of the card. That is certainly something which is capable of meeting the test of violating her dignity etc.. We will consider that further when considering whether it was done because of race or sex.
131. The last complaint is about the failure to respond to Ms Lawal's letter of 7 July 2023. This too is problematical. It is referred to in the case summary quoted at the outset, i.e. that Ms Lawal wrote to the Board 'raising her concerns at her treatment.' In all probability the letter itself was not available at that hearing but having examined it, it is not really a complaint about her treatment, it is a complaint about Mrs Sentinella. As already mentioned it is no sort of appeal and does not mention the withdrawal of her personal accreditation, no more than the closure of the home. There was also the delay in sending it and the lack of any follow up on her part. It seems to us very doubtful in those circumstances whether the failure to respond, or to send no more than an acknowledgement, can be said to have violated Ms Lawal's dignity or created an intimidating et cetera environment for her? The last words of that test do not apply here as the environment – her work as a Christian Science Nurse - had effectively been ended already.
132. Did the silence from Mr Evans violate her dignity then? It is clear from the wording that she expected a more substantial response, since she offered to provide supporting statements and a copy of the Croner report. That report was not really relevant to the withdrawal of her card but Ms Lawal has maintained the view that the criticisms about her began with her appointment and that this report exonerated her.
133. We have to say that there is no mention of this episode in Ms Lawal's witness statement. (Similarly, and surprisingly, there is only a passing mention of the webinar.) Ms Lawal did ask Mr Evans about his lack of a response, and he said that he shared it with the Board at the time. Essentially, he regarded the message as an emotional reaction on her part.
134. Nor was it mentioned in Ms Lawal's closing submissions, and although submissions are not evidence, it leaves us with no basis on which to conclude that

this particular complaint is valid, or that Ms Lawal found this particularly upsetting at all. On that basis we find that this omission by Mr Evans cannot amount to an act of harassment, regardless of his motivation.

Direct discrimination

135. These complaints are also made as allegations of direct discrimination. The test under section 13(1) Equality Act is as follows:

“A person (A) discriminates against another (B) if,

because of a protected characteristic [race or sex],

A treats B less favourably than A treats or would treat others.

136. The term “less favourable treatment” invites the question, less favourable than who?

137. Section 23(1) provides that:

On a comparison of cases for the purposes of section 13 ... there must be no material difference between the circumstances relating to each case.

138. The list of issues refers to Ms de la Harpe but that seems to be a mistaken approach. Ms de la Harpe was not the Administrator and did not have her card removed, so there is no real comparison between her circumstances and those of Mrs Lawal.

139. The other way to approach this is to imagine someone of a different race or sex (in this case) but otherwise in exactly the same circumstances and attempt to work out how they would have been treated. That is called a hypothetical comparator. In this case, that means someone in exactly the same circumstances except that they have a different race or sex.

140. If we start with the webinar, those circumstances include, as a minimum, the fact they had responsibility as the Administrator for the overall culture and smooth running of the home and that the Commission had removed the homes accreditation because of a large number of failings.

141. In our view, having come to the view that the webinar was held for good reason and without the intention of humiliating Mrs Lawal, it is hard to see any way in which it could be said that this was less favourable treatment. We understand that this must have been a very difficult session to listen to, both for Mrs Lawal and Mrs McIntyre as head of the Visiting Service. They would not know at any point whether they were to be mentioned and picked out for individual criticism. But that point did not come. In fact neither of them was mentioned by name. We cannot therefore see that things would have been handled any differently if Mrs Lawal had

been a white woman in the same circumstances, or for that matter a black man. Consequently we can find no less favourable treatment. On that basis we would also dismiss the webinar complaint as an act of direct discrimination too.

142. Our views are similar in relation to the decision to remove her personal card and the lack of response to her email of 7 July but that brings us to the central question, which is *why* the Mother Church or Mrs Sentinella acted as they did.

Burden of proof

143. In the case of discrimination, was it *because of* Mrs Lawal's race or sex? For harassment, was it *related to* race or sex?

144. That does not have to be the only reason, or even the main reason, it just needs to have been a significant influence. That influence can even be the result of subconscious bias. Having heard the evidence from each side and made our findings of fact, we now have to decide whether the proper inference to draw is that there was such bias at work; or as it is sometimes described, whether it was tainted by discrimination.

145. The Equality Act gives us a structure to follow in carrying out that exercise. Section 136 deals with the burden of proof. It provides that:

(2) If there are facts from which the [tribunal] could decide, in the absence of any other explanation, that a person (A) contravened the provision concerned, the [tribunal] must hold that the contravention occurred.

(3) But subsection (2) does not apply if A shows that A did not contravene the provision.

146. So we first have to decide from all the evidence whether there might have been discrimination involved. If so, it is then for the respondent to satisfy us that there was not. If that happens, cogent evidence is required to show that the treatment in question was 'in no sense whatsoever' tainted by discrimination.

147. It is well-established that a mere difference in treatment is not enough by itself: something more is required. That may be something relatively minor. If a manager decides to discipline someone over a dispute at work that will not usually call for any further explanation, but if the manager normally opts for mediation it may do.

148. As we have already described by the time of Mrs Lawal's appointment there had been concern about the culture at Charter Manor for some time. Ms Castroman In particular wanted to move away from the existing hierarchical environment there. It is not a case of criticisms emerging only when she is first appointed.

149. No doubt Ms Castroman also felt that that change of culture would best be achieved by having a new broom in place like Ms de la Harpe, rather than someone like Mrs Lawal who had been there for many years. The Trustees clearly thought she was the best person for the job too, before any issue over this disciplinary warning came to light.
150. Without repeating the description of the recruitment process and the threat made by Mrs Lawal to report this to the CQC and the Charity Commission, it is obvious that Mrs Lawal's appointment as administrator, and the manner in which it came about, were extremely contentious at the time, even though the full facts may not have been known by members of staff. There is no need therefore to cast around for a discriminatory motive for that reaction - it is exactly what might have been expected.
151. After that there was the first Croner review, which revealed that staff were very divided. It did not look into the question of how Mrs Lawal came to be appointed at all, just into whether her criticism of Ms de la Harpe was in fact justified. Clearly the subsequent grievance investigation reached a different view and we do not need to resolve that issue. Its significance is that Mrs Lawal was able to take up her responsibilities and that any interference (as she might see it) from the Commission or the Mother Church effectively ended for the time being. It has to be remembered that overall Mrs Lawal was in charge of the running Charton Manor for about four years before its closure. There were concerns raised at the outset, then later in 2021 and finally in 2023, which is what one would expect from a series of inspections but there is nothing to indicate any ongoing campaign to undermine Mrs Lawal in the meantime.
152. In her closing submissions, Mrs Lawal did not use the same terms to describe the actions of the respondents. She described it as a pattern of behaviour from which we should infer discrimination rather than an overt campaign. But that still requires some requires some act or omission on the part of Mrs Sentinella or the Church generally, which might suggest the presence of discrimination. Nothing specific was suggested and we found nothing in particular which called for explanation.
153. It is also clear that real concerns emerged during that period. They were not fabricated or solicited or even, as far as we can judge, exaggerated to any degree. The decision to recruit her brother Osita is very concerning, since it gives the impression that Mrs Lawal was abusing her authority. We accept that Mrs Lawal did not actually interview him, but that will have done little to dispel that impression, which was clearly shared by some of the staff, like Luis.
154. Even in this situation Mrs Lawal has not accepted any responsibility for the fact that he arrived, although it seems highly unlikely that he would have made an application from Nigeria had she not been at the home at the time. There is

therefore a theme on her part of refusing to accept responsibility, as noted by the Commission inspectors. That is perhaps revealed most clearly by the original claim form and the final email sent to Mr Evans, neither of which make any mention of the failed inspections or the closure of the home. Instead, everything is seen through the prism of race.

155. The first Commission inspection in 2021 was, as already noted, an unprecedented event, with the withdrawal of all of accreditation from all of the services operated at the home. It seems to us most unlikely that the Commission would have taken any pleasure in reaching those conclusions or that they would go so far in making life difficult for Mrs Lawal, or to prove a point that she ought not to have been appointed. Again the Commission is separate from the Mother Church and the main critic of her appointment had been Ms Castroman, who was not part of the Commission.
156. It was also a noteworthy event given that Charton Manor was an important facility and the main training hub in the UK. For the reasons already given, it seems to us entirely understandable that a decision was made to put on a webinar even if that was a difficult experience for Mrs Lawal. We also note the effort that went into the production of that webinar and the number of senior figures within the Mother Church who gave their time to the presentations. The overall theme was not really the decision in relation to Charton Manor but to make those on the call appreciate the overall need for such inspections, how they had come about, the work involved and how it fitted into the general regulatory framework.
157. There was also much in the way of help offered. We are also satisfied that the intention of the Commission and the Mother Church was to help, so far as possible Charton Manor to have its accreditation restored. It does not even appear to have been envisaged that the improvements would not be made or that it would eventually have to close.
158. However, as we have documented, over the next two years there were a succession of issues at the home involving the care of residents but also a culture of recrimination if members of staff spoke up, members of staff being made to work excessive hours and with little or no training being provided. Our clear impression is that undue pressure was applied to staff, amounting in some cases (Luis and Ms Adiele for example) to exploitation. Even if some of the blame for that can be shared with the Head of Nursing and her deputy, Mrs Lawal had ultimate responsibility to ensure that staff were treated well.
159. Hence there is a clear explanation for the steps taken by the Commission and, ultimately, for the decision to remove the cards from each member of the senior management team.

160. We should note that throughout the hearing there was number real mention of sex discrimination and it is not mentioned at all in the original claim form beyond the relevant box being ticked. Mrs Lawal puts her case on the basis that race and sex are cumulative factors, contrasting her appointment as a black woman with the previous white men, but they have to be considered in turn, and we could see no relevance to the claim of sex discrimination here.
161. We have considered carefully whether the decision to remove the card was itself something that was so harsh or unexpected in the circumstances that it is enough to call for an explanation from the respondents, but overall it seems to us an understandable step. The relevant test to apply in each individual case is the same as in the case of the home i.e. whether it met the standards of Article 8, Section 31, requiring a demonstrable knowledge of Christian science practice and the practical wisdom necessary in a sick room. It was not confined to EL but included her two most senior colleagues. They were all black women but equally they shared responsibility for the unprecedented situation which had arisen.
162. We were also concerned about the manner in which it was done, and the fact that there was no hearing or even a face to face explanation about why this recommendation was being made. Again, we remind ourselves that this was not an employer but a qualification body. It may be in fact that they were not aware that they may have any legal liability on that basis, but Inquiry there was no written policy or procedure for these events and we understand that it seemed to Mrs Sentinella little more than a natural extension of the conclusions in relation to the home.
163. There was also the rather offhand way in which the complaint email was dealt with. The main point here is that it was not asking Mr Evans to revisit the decision with regard to her accreditation, instead it was an attempt to initiate a separate complaint against Mrs Sentinella. Again there was no appeal procedure to follow and it may have been difficult to know how best to respond.
164. We do consider that the way in which the withdrawal of accreditation and the handling of this issue were unfair and unnecessary but it does not follow that we should infer that it was or might have been on grounds of race. The House of Lords concluded in the case of **Glasgow City Council v Zafar** [1997] UKHL 54 that a lack of fairness does not necessarily mean that it was an act of discrimination. Taking in isolation there was a lack of consultation over this step but there had been an extensive procedure followed in relation to the accreditation of the home and their ongoing process over two years to improve the culture there and the care of patients. In those circumstances we do not accept that any burden shifts to the respondents.

Jurisdictional points

165. Aside from those considerations there are some other legal reasons as to why some of these complaints cannot succeed.

166. The liability of qualification bodies is dealt with at section 53 of the Equality Act 2010. With regard to harassment and discrimination, it states:

(1) A qualifications body (A) **must not discriminate** against a person (B)—

(a) in the arrangements A makes for deciding upon whom to confer a relevant qualification;

(b) as to the terms on which it is prepared to confer a relevant qualification on B;

(c) by not conferring a relevant qualification on B.

(2) A qualifications body (A) **must not discriminate** against a person (B) upon whom A has conferred a relevant qualification—

(a) by withdrawing the qualification from B;

(b) by varying the terms on which B holds the qualification;

(c) by subjecting B to any other detriment.

(3) A qualifications body must not, **in relation to conferment by it of a relevant qualification, harass—**

(a) a person who holds the qualification, or

(b) a person who applies for it.

[Emphasis added]

167. Examining these provisions, there are two sections dealing with discrimination and one dealing with harassment. Subsection (1) deals with discrimination at the beginning of the qualification period and subsection (2) deals with discrimination at the end. One could imagine, for example, a qualification body that insisted on unnecessary evidence of the right to live and work in the UK before issuing a qualification, and that may amount to race discrimination.

168. Subsection (2) includes the words “by subjecting B to any other detriment.” That has to be interpreted by reference to the general purpose of the section which is to prevent discrimination in connection with withdrawing or restricting the qualification.

169. It is hard to see, and we do not accept, that holding a webinar in 2021 could be a detriment that falls within the scope of this provision, which is concerned with removing qualifications. It is an entirely separate kind of act and was done two years earlier. As already noted, that claim is well out of time but we can't see that it would be just and equitable to try and extend it to allow this allegation to be considered, even if we had concluded that it was related to on grounds of race or sex.
170. Similarly the scope of harassment protection is also couched in terms of conferring the qualification. There is no corresponding term regarding harassment at the end of the qualification and that must be deliberate. Section 54(5) extends this definition of conferment to renewing or extending it, and so Mr Halliday accepted that this may extend to some of the allegations here.
171. It is not clear to us that that concession was properly made (and since it is a matter of jurisdiction it is not a matter for the parties to agree on) since the card in question is not awarded for a limited period and there is no process for extending or renewing it.
172. If this was a case of a qualification being awarded for a five year period, Then there could be harassment over the arrangements for renewing it but we cannot see how that definition can be stretched to cover withdrawing the qualification itself or the surrounding circumstances. In this case Mrs Lawal's card was conferred in 1993 so in our view none of the allegations of harassment can be said to relate to its conferment or extending or renewing it.
173. Consequently we can see no legal basis for the complaints of harassment here, nor in relation to the webinar as an act of discrimination.
174. A further issue for the webinar is that it is so far out of time, about two years before the claim was submitted. To pursue earlier acts of this sort, Mrs Lawal must either prove that:
- (a) the discrimination was in fact conduct extending over a period of time and ending after this last act, or
 - (b) it would be just and equitable to extend the normal time limit.
175. Neither of these exceptions apply here. As to the first, this involved a large gap in time between the webinar and the removal of the card. A great deal happened in that time and the immediate cause of the removal was the second inspection by the Commission. It is therefore only remotely connected with the webinar. Secondly, it would not be just and equitable to extend time since, on our view, the webinar is not an act within the scope of section 53 Equality Act 2010.

176. More generally, it was not clear to us that individuals working for a qualification body can be personally liable for acts of harassment or discrimination and there does not appear to be any authority to that effect. Section 110 of the Employment Rights Act 1996 sets out the circumstances where such individual liability can arise. It is couched in terms which match the provisions of sections 39 to 41 of the Act, which concern the liability of employers and principals (generally those who take on temporary workers through an agency). We did not hear full argument but Mr Halliday accepted that this could extend to those employed by a qualification body and so we did not need to decide the point.
177. As a footnote, no doubt the Church will recognise following this decision that it is a qualification body and that it ought to have appropriate processes in place, both for removing someone's card and also a right of appeal against that decision. It is not fair, and certainly not in accordance with the principles of the Church, repeatedly espoused in correspondence, for Mrs Lawal simply to receive a letter informing her that she is no longer a Christian Science Nurse.
178. However, and for all of the above reasons, the complaints are dismissed.

Employment Judge Fowell

Date 18 July 2025

Notes

Reasons for the judgment having been given orally at the hearing, written reasons will not be provided unless a request was made by either party at the hearing or a written request is presented by either party within 14 days of the sending of this written record of the decision.

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